

DEPARTMENT OF VETERANS AFFAIRS

**SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL
ITEMS IN ACCORDANCE WITH Revolutionary FAR Overhaul (RFO) FAR 12.201-1**

Acquisition Plan Action ID: [REDACTED]

JOFOC Log Number: [REDACTED]

1. **Contracting Activity:** Department of Veterans Affairs (VA), Veterans Health Administration (VHA), Regional Procurement Office West (RPOW), Network Contracting Office (NCO) 21 on behalf of the VA Sierra Nevada Health Care System (VASNHCS), 975 Kirman Avenue, Reno, Nevada, 89502.

Payments made using 1358s.

2. **Nature and/or Description of the Action Being Processed:** This procurement is for a new Sole Source firm fixed price (FFP) Indefinite Delivery Indefinite Quantity (IDIQ) bridge contract in accordance with RFO FAR 12.201-1 Simplified Procedures for Certain Commercial Items and specifically RFO FAR 12.102 Restricting competition, where acquisitions conducted under Simplified Acquisition Procedures are exempt from the requirements of RFO FAR Part 6, but still require a justification using the format of RFO FAR 6.104. Also, RFO FAR 12.102(b), where acquisitions valued over the Simplified Acquisition Threshold require a justification using the format of RFO FAR 6.104.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** This procurement is for a contractor to provide all required supplies, materials, labor, supervision, transportation, patient education, safety management, and infection control for home oxygen supplies and services to beneficiaries of the Veterans Health Administration, Regional Procurement Office West, Network Contracting Office (NCO) 21 on behalf of the VA Sierra Nevada Health Care system service territory.

A sole source IDIQ bridge contract needs to be awarded to the incumbent B & B Medical Services to ensure the continued care and health of our veterans. The period of performance for this bridge contract will be for two (2) twelve (12) month ordering periods covering April 1, 2026, to March 31, 2028, with the opportunity of one 6-month extension via the inclusion of FAR 52.217-8, Option to Extend Services covering FY26 – FY28.

Ordering Period 1: April 1, 2026, to March 31, 2027

Ordering Period 2: April 1, 2027, to March 31, 2028

A nationwide contract was anticipated but does not seem to be in the works at this moment. At the time of receipt of this update, there was insufficient time to solicit and award a new long-term contract. A five-year IDIQ contract package will be submitted by the station during this bridge's performance. In the interim, a sole source IDIQ bridge contract needs to be awarded to the incumbent B & B Medical Services to ensure the continued care and health of our veterans.

The Independent Government Estimate (IGCE) is [REDACTED], which is based on historical information from previous home oxygen supplies and services contracts for the VA Sierra Nevada Health Care System.

The maximum ceiling of the contract will be [REDACTED].

Effective Date: 12/30/2025

Revision: 02

Acquisition ID#: [REDACTED]

4. **Statutory Authority Permitting Restricted Competition:**

RFO FAR 12.201, Simplified Procedures. The statutory authority for applying the Simplified Procedures for Commercial Items of FAR 12.201 is 41 U.S.C. § 1901 and is implemented by RFO FAR 12.102(b) for restricting competition on this procurement. **Competition is restricted on this procurement for the reason below:**

- ☒ (X) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements
- ☐ () Unusual and Compelling Urgency
- ☐ () Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services
- ☐ () International Agreement
- ☐ () Authorized or Required by Statute
- ☐ () National Security
- ☐ () Public Interest

5. **Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):**

Home oxygen supplies and services are currently provided by B & B Medical Services under [REDACTED], which expires on March 31, 2026. B & B Medical Services has performed satisfactorily on this contract. This was a sole source due to the Government Accountability Office (GAO) protest against the VISN-wide solicitation for the same service. Currently, a nationwide contract for home oxygen has not been awarded as anticipated. At this time, B & B Medical Services is the only firm capable of providing the necessary supplies and services described in Section 3 in a timely manner, without the Veterans Health Administration experiencing unacceptable or severe delays in fulfilling its requirements.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:**

The station and contracting office will continue to perform market research for these services so a long term IDIQ can be put in place. This action is not a new long-term IDIQ contract solicitation, but a sole source short-term bridge IDIQ contract to the incumbent to prevent the loss of critical home oxygen supplies and services to allow time for the procurement of the long-term IDIQ contract.

7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:**

The Contracting Officer anticipates fair and reasonable pricing will be received for this bridge contract. Pricing received will be compared to the previously established IDIQ, [REDACTED], and take into consideration inflation and other increases in costs (i.e. fuel, COVID related expenses, etc.), as well as comparison to similar IDIQs and established contracts in accordance with FRFO FAR 12.204(a).

8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:**

As noted in section 6, market research is ongoing for these services so a long term IDIQ can be put in place. The station and contracting office will do a thorough search to identify potential vendors for the long term solution.

9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:**

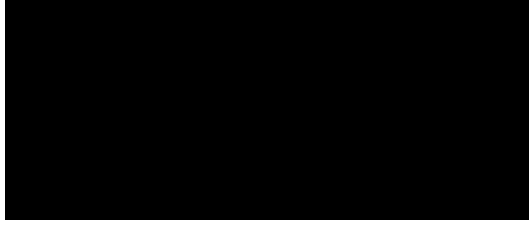
There are no other facts to support the use of full and open competition.

- 10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** B & B Medical Services, 4045 NW 64th St, Suite 250, Nichols Hills, OK 73116-1732.
- 11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** The market will be continually assessed to determine if other vendors can provide the required supplies and services supporting VA Sierra Nevada service territory.
- 12. Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

- a. **Contracting Officer or Designee's Certification (required)**: I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.



- b. **One Level Above the Contracting Officer (Required over \$350K but not exceeding \$900K)**: I certify the justification meets requirements for other than full and open competition.



- c. **VHA Advocate for Competition and RPO HCA Review and Approval**: I have reviewed the foregoing justification and find it to be complete and accurate to the best of my knowledge and belief and approve \$900K to \$90 million for other than full and open competition.

